VANCOUVER PUBLIC SCHOOLS

VPS

Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted May 30, 2025 online at www.vansd.org

- Procedure 2110, Multilingual Education
- Procedure 2265, Choice Schools and Programs
- Procedure 3110, Qualification of Attendance and Placement
- Procedure 3210, Nondiscrimination
- Procedure 3414, Infectious Diseases
- Procedure 4220, Complaints Concerning Staff and Programs
- Procedure 5253, Maintaining Professional Staff / Student Boundaries

(DRAFT 04-14-25)

Procedure – Multilingual Education Program

The following procedures are instituted for purposes of implementing a multilingual education program. The district's multilingual education program includes a transitional bilingual instruction program and dual language programming, as described below.

I. Transitional Bilingual Instruction Program

A transitional bilingual instruction program, as defined by state law, means a system of instruction which uses two (2) languages, one (1) of which is English, to build upon and expand language skills to enable the student to achieve competency in English. In those cases where the use of two (2) languages is not practicable, appropriate instruction for English language learners may be provided primarily in English.

The district will provide English language learners appropriate core academic instruction in addition to language instruction. The district's transitional bilingual instruction program is intended to supplement core academic instruction.

A. Program Application and Description

Annually, and prior to August 1 of each year, the district will submit an application to the Office of Superintendent of Public Instruction (OSPI) requesting funding to support its transitional bilingual instruction program. In its application, the district will provide a description of its research-based program models including staffing and implementation strategies.

B. Eligibility

At the time of registration, the parents/guardians of each student will be asked to complete a home language survey, which identifies the child's primary language. Students that indicate on the home language survey a primary language other than English will be assessed within ten (10) school days of enrollment and attendance using the Washington Language Proficiency Placement Test to determine eligibility for the transitional bilingual instruction program. Any student who scores a level one (1) (beginning/advanced beginning), two (2) (intermediate) or three (3) (advanced) will be eligible for the program. Students who score at level four (4) (transitional) are not eligible for the program. Staff will determine the appropriate instructional program for each eligible student.

C. Parent/Guardian Notification

1. Parents/guardians will be notified, in writing, of their child's initial eligibility and notified annually of their child's continuing eligibility for the transitional bilingual instruction program. At a minimum, the parent/guardian notification will contain:

   a. How the child's eligibility was determined and the child's current level of English proficiency;

   b. A description of the district's program and how it will meet the child's educational needs;

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c. The specific exit requirements for the program; and

d. Information on the parent's right to refuse services.

2. Communication with parents/guardians should be provided, when feasible, in the parents' primary language.

D. Continued Eligibility/Annual Assessment

Each eligible English language learner must be assessed annually, using the state-approved language proficiency test to determine continued eligibility. Students remain eligible until they reach level four (4) (transitional) on the annual state-approved language proficiency test.

E. Expected Graduation Year

For eligible English language learners who require extended time to meet high school graduation requirements, the district may set an expected graduation year beyond the typical four (4) years of high school or through the school year in which a student turns twenty-one (21).

F. Record Keeping and Documentation

The district will maintain records of eligible students and comply with state reporting requirements. Original documents will be kept in the student's cumulative folder and copies will be kept in the program folder, if applicable. These documents include the home language survey, parent notification letters, parental waiver (if applicable), and language proficiency test assessment data.

G. Communication Plan

The district will develop and provide to parents/guardians, district staff and interested stakeholders a user friendly description of the transitional bilingual instruction program offered in the district. The description will include the process for identifying and serving English language learners and provide contact information for the district's transitional bilingual instruction program manager.

II. Dual Language Programming

Dual language is an instructional model that provides content, language, and literacy instruction in English and a partner language. The goals of the district's dual language programming are to help students: become bilingual and biliterate, developing high levels of proficiency in two languages; perform at or above grade level in academic areas in both languages; and demonstrate positive cross-cultural attitudes and behaviors.

Consistent with this procedure, the district will prioritize placement of multilingual/English learners in its dual language programming and will provide participating multilingual/English learners appropriate core academic instruction in addition to language instruction. English dominant students are invited to participate in dual language programming as an opportunity to become bilingual and biliterate while learning the general education curriculum.

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A. Current List of Dual Language Programming

Dual Language School	**Dual Language Programs**
Ruth Bader Ginsburg (RBG) (Spanish)	Elementary School: Sarah J. Anderson (Spanish) Harney (Spanish) Martin Luther King, Jr. (Spanish) Eleanor Roosevelt (Spanish) Ben Franklin (Mandarin) Middle School: Gaiser Middle School (Spanish) McLoughlin (Spanish) Jason Lee (Mandarin) High School Fort Vancouver (Spanish) Columbia River (Mandarin)

B. District Commitments for Dual Language Programming

The District will:

1. Offer dual language programming at the elementary and secondary levels in order to meet the learning needs of multilingual learners.

2. Use the district's Dual Language Framework to guide programming and instructional practices.

3. Solicit input from dual language programming leadership and staff when considering instructional materials for dual language programming, including translations of instructional materials written in English. The district will strive to identify authentic language translations, when available.

4. Annually assess, by means of the state approved test, improvement in English language proficiency for each eligible English language learner participating in the district's dual language programming.

5. Provide for continuous improvement and evaluation of the district’s dual language programming to determine its effectiveness.

6. Actively inform families of dual language programming opportunities for multilingual and English speaking students.

7. Communicate with families of students who are English language learners in a language they can understand in accordance with Policy 4218, Language Access.

8. Actively recruit and retain bilingual, biliterate certificated and classified staff to serve in dual language schools and programs.

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C. Dual Language Programming Admission Process

1. The district will establish an enrollment cap for each dual language school and program based on the learning needs of multilingual learners, staffing, and facility capacity. For each class, up to sixty percent (60%) of the enrollment slots will be designated for multilingual/English learners whose dominant language is the partner language, and the remaining enrollment slots will be open to all applicants, including English dominant students.

2. The district will admit students to each dual language school and program up to the established enrollment cap as outlined in this procedure. If the number of applicants for a school or program exceeds the number of spaces available, a centralized lottery determines admissions and generates waitlists.

3. Prior to the application and lottery process, the district will distribute to students and parents/guardians information regarding:

   a. The district's dual language programming offerings along with an invitation to apply;

   b. The deadline for application;

   c. The enrollment cap for each dual language school and program; and

   d. Families must attend a dual language presentation or watch the dual language information video.

4. Applications submitted by the published deadline will be subject to the following process:

   a. A common application will be used for dual language schools and programs.

   b. All students who submit a completed application are eligible for admission. The district will admit students to each dual language school and program up to the established enrollment cap. If the number of applicants for a dual language school or program exceeds the number of spaces available, all applicants will be entered into the centralized lottery.

   c. The lottery will determine admissions and generate waitlists as follows:

      i. There will be separate lotteries for the enrollment slots designated for multilingual/English learners whose dominant language is the partner language and for the enrollment slots open to all applicants.

      ii. Lottery for multilingual/English learners: Students who reside in the school's attendance area where the program is located will have first priority for enrollment. Siblings of students currently enrolled in a dual language program will have second priority for enrollment. The lottery for any remaining enrollment slots designated for multilingual/English learners will randomly select students for admission using the ~~weighted~~ lottery allocation for each neighborhood elementary school.

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iii. Lottery open to all applicants: Students who reside in the school's attendance area where the program is located will have first priority for enrollment. Siblings of students currently enrolled in a dual language program will have second priority for enrollment. The lottery for any remaining enrollment slots open to all applicants, including English dominant students, will randomly select students for admission using the ~~weighted~~ lottery allocation for each neighborhood elementary school.

iv. Lottery for Ruth Bader Ginsburg (RBG): RBG will follow the same lottery processes outlined above, except that RBG does not have a school attendance area. There will be separate lotteries for the RBG enrollment slots designated for multilingual/English learners whose dominant language is the partner language and for the RBG enrollment slots open to all applicants. Siblings of students currently enrolled in RBG will have first priority for enrollment. The lottery for any remaining enrollment slots will randomly select students for admission using the ~~weighted~~ lottery allocation for each neighborhood elementary school.

d. If there are more applicants than spaces available, in-district students will be given priority. Once a student, whether in-district or nonresident, is accepted, the student will be automatically accepted for the remaining years of the dual language school or program. Students accepted into elementary dual language programming will be accepted into the district's secondary dual language programming; and

e. Nonresident students must submit a boundary exception to attend a dual language school or program. The boundary exception shall be granted so long as the student remains in dual language programming and meets the other requirements of Procedure 3141, Nonresident Students.

5. The admission process is open to all students; however, students wishing to enroll in dual language programming after first grade must demonstrate language proficiency in the partner language prior to admission into dual language programming.

6. Students who enroll in a dual language school or program are expected to make a minimum one-year commitment and maintain regular attendance. A student whose record of attendance (including absences and tardiness) has a significant negative effect on the student's education in the partner language may be considered for removal from dual language programming in accordance with the boundary exception revocation procedures described in Procedure 3131, Resident Students, District Attendance Areas, and Intra-District Boundary Exceptions, or Procedure 3141, Nonresident Students.

D. Appeal

A student who has not been admitted to a dual language school or program may request in writing a reconsideration of their application. The request for reconsideration shall be directed to the appropriate executive director and then appealed to the superintendent/designee.

E. Dual Language Programming Transportation

1. For students attending Ruth Bader Ginsburg Elementary School, transportation will be provided from the student’s bus stop to Ruth Bader Ginsburg.

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2. For students attending all other dual language programs, transportation will be provided only for students who reside within the school attendance area. No transportation will be provided for students who reside outside of the school attendance area, including nonresident students.

F. New Dual Language Programs at Elementary and Secondary Levels

Vancouver Public Schools' staff members may make a recommendation for a new dual language program at the elementary and secondary level to the superintendent or designee. The following information about the proposed dual language program shall be submitted and considered:

1. Connection to the overall district or school vision;
2. How the district initiatives, priorities, and mission and vision statements will be promoted;
3. Application of the district's equity lens;
4. How district and Washington state academic content standards will be addressed;
5. Assurance of conformity to state and federal law;
6. Data indicating the need and how the dual language program will improve student learning;
7. Similar school/programs that have been researched;
8. Proposed sequence of identified courses;
9. Proposed enrollment capacity;
10. Expected student outcomes;
11. Staff and advisory committee members;
12. Proposed timeline for development and implementation;
13. Estimated ongoing costs; and
14. Impact on other schools, courses, or programs, i.e., would the adoption of the proposed dual language program replace other courses or affect them negatively?

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APPROVED:

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Dr. Jeff Snell, Superintendent Date
Vancouver Public Schools

(DRAFT 04-14-25)

Procedure - Choice Schools and Programs

~~**I. Definitions**~~

~~A. The term "parent" as used in this procedure means a parent, guardian or a person having legal custody of a child. If the student is eighteen (18) years or older, or is legally emancipated, the procedures for the parent in this regulation may be exercised by the student.~~

~~B. The term "student transfer" is synonymous with "boundary exception."~~

~~C. The term "weighted lottery" means the use of school level demographic information, such as socioeconomics of the school, percentage of multilingual learners, and total enrollment, to allocate a number of slots in a choice school for each neighborhood elementary school boundary.~~

~~I~~I. Choice Schools and Programs Advisory Committee

Each choice school and program will establish an advisory committee to enhance its goals and visions. The committee will include parents, students, staff, community members, and administrators. The committee will provide input, links to the relevant professional community, and other information and opinions as requested by the principal or designee.

~~I~~II. Current list of Choice Schools and Programs

Choice Schools

Vancouver School of Innovation, Technology and Art (VITA)
Ruth Bader Ginsburg (RBG)
Vancouver School of Arts and Academics (VSAA)
iTech Preparatory – STEM
Flex Academy
Heights Campus Programs (Virtual Learning Academy, Vancouver Home Connection, Open Doors)

Choice Programs

Columbia River
- International Baccalaureate (IB)

Fort Vancouver
- Medical Arts (Half-Day Morning)
- Culinary Arts (Half-Day Morning)
- Advanced Manufacturing (Half-Day Morning)
- ~~Careers in Education (Half-Day Morning)~~

Hudson's Bay
- Construction Trades (Half-Day Morning)

Skyview
- Science, Math, Technology (SMT)

III~~V~~.Admission Process

A. The district will establish an enrollment cap for each choice school or program based on staffing and facility capacity.

B. The district will admit students to each choice school or program up to the established enrollment cap. If the number of applicants for a choice school or program exceeds the number of spaces available, a centralized lottery determines admissions and generates waitlists.

C. The application and lottery process is open to all students. Prior to the application and lottery process, the district will distribute to students and parents/guardians information regarding:

1. The offerings of each choice school or program along with an invitation to apply;

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2. The deadline for application; and
3. The enrollment cap for each choice school or program.

D. Applications submitted by the published deadline will be subject to the following process:

1. A common application will be used for all choice schools and programs. Each choice school and program may include additional, optional questions on the application regarding the applicant's relevant experiences, interests, and program preferences; however, these additional questions shall have no effect on admissions to the choice school or program.

2. All students who submit a completed application are eligible for admission. The district will admit students to each choice school or program up to the established enrollment cap. If the number of applicants exceeds the number of spaces available in a choice school or program, all applicants will be entered into the centralized lottery.

3. The lottery will determine admissions and generate waitlists as follows:

   a) The lottery for sixth (6th) grade admission to iTech Preparatory (iTech) will randomly select students for admission using the ~~weighted~~ lottery allocation for each neighborhood elementary school. The lottery for seventh (7th) through twelfth (12th) grade admission will randomly select students from the applicant pool. Ten percent (10%) of the enrollment slots at iTech are reserved for students who reside in Battle Ground Public Schools.

   b) The lottery for sixth (6th) grade admission to Vancouver School of Arts and Academics (VSAA) will randomly select students for admission using the ~~weighted~~ lottery allocation for each neighborhood elementary school. The lottery for seventh (7th) through twelfth (12th) grade admission will randomly select students from the applicant pool.

   c) The lottery for Ruth Bader Ginsburg (RBG) will follow the process outlined in Procedure 2110, Multilingual Education Program.

   d) The lottery for all other choice schools and programs will randomly select students for admission using the ~~weighted~~ lottery allocation for each neighborhood elementary school.

   e) Students not admitted to the choice school or program will be placed on a waiting list and remain in the lottery pool. If space becomes available students will be selected from the pool based on the lottery process described above for the respective school or program. The waiting list and lottery pool will be in effect until the end of the school year. To reapply, the student must submit a new application each year.

4. If there are more applicants than spaces available, resident students will be given priority. Once a student, whether resident or nonresident, is accepted, the student is automatically accepted for the remaining years of the school or program; and

5. Nonresident students must submit a boundary exception to attend a choice school or program. The boundary exception shall be granted so long as the student remains in the school or program and meets the other requirements of Procedure 3141, Nonresident Students.

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E. Students who enroll in a choice school or program are expected to make a minimum one-year commitment to the school or program and maintain regular attendance. A student whose record of attendance (including absences and tardiness) has a significant negative effect on the student's education may be considered for removal from the choice school or program in accordance with the boundary exception revocation procedures described in Procedure 3131 (Resident Students, District Attendance Areas, and Intra-District Boundary Exceptions) or Procedure 3141 (Nonresident Students).

F. Students at VSAA, Skyview SMT, iTech, Flex Academy, VITA, RBG, and Columbia River IB must be enrolled as full-time students in their respective programs. Participation in a dual enrollment program, such as Running Start, does not preclude enrollment in a choice school or program.

G. A nonresident student who resides in Washington and is the child of a full-time certificated or classified employee of Vancouver Public Schools will be permitted to enroll at the choice school to which the employee is assigned, as outlined in Procedure 3141, Nonresident Students.

IV. Appeal

A student who has not been selected may request in writing a reconsideration of his or her application. The request for reconsideration shall be directed to the appropriate executive director and then appealed to the superintendent/designee.

V~~I~~. Choice Schools and Programs Transportation

A. The district will provide transportation for resident students only.

1. Elementary School: Transportation will be provided from the student's bus stop to the student's choice school.

2. Middle and High School: Transportation will be provided from the student's bus stop to the student's home school and then to the site, so long as it is economically feasible or unless extraordinary situations develop. At the end of the school day, the district will transport the student from the site to the student's home school, but not to the student's bus stop, except for students of VSAA and iTech.

B. Transportation is provided for students enrolled in half-day choice school or programs.

V~~I~~I. New Choice Schools and Programs

A. Vancouver Public Schools' staff members may make a recommendation for a new choice school or program to the superintendent or designee. The final decision of adding or removing a choice school or program rests with the board of directors. The following information about the choice school or program shall be submitted:

1. The educational vision;

2. Connection to the overall district or school vision;

3. Alignment with approved district curriculum;

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4. How the district initiatives, priorities, and mission and vision statements will be promoted;
5. Application of the district's equity lens;
6. How district and Washington state academic content standards will be addressed;
7. Assurance of conformity to state and federal law;
8. Data indicating the need and how the school or program will improve student learning;
9. Similar school/programs that have been researched;
10. Proposed sequence of identified courses;
11. Proposed enrollment capacity;
12. Expected student outcomes;
13. Staff and advisory committee members;
14. Choice schools and programs coordinator and central office liaison;
15. Proposed timeline for development and implementation;
16. Estimated ongoing costs; and
17. Impact on other schools, courses, or programs, i.e., would the adoption of the proposed choice school or program replace other courses or affect them negatively?

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APPROVED:

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Dr. Jeff Snell, Superintendent
Vancouver Public Schools

Date

Procedure – Qualification of Attendance and Placement

~~**I. Entrance Qualifications for Kindergarten Program**~~

~~A. As a minimum, eligibility for the exemption from the age requirement will be based upon an analysis of the child's (1) physical, health and motor development; (2) social and emotional development; (3) approaches toward learning; (4) language, literacy and communication; and (5) cognition and general knowledge. Where feasible, assessment devices will be used that will permit students who are to be considered for exemption to be compared to the level of performance that would be expected of children with a chronological age of five (5) years for kindergarten and six (6) years for first grade in each of the areas of ability.~~

~~B. Early Entrance Qualifications. Early entrance will be considered for children born September 1 to October 15. This allows children who are sufficiently advanced to enter kindergarten prior to the uniform entry age.~~

~~1. Application Process~~

~~a) Applications for early entrance for children living within the district must be submitted by parent(s) during the district determined application window. Proof of age and residency will be required.~~

~~b) A minimum of two hundred (200) hours of pre-school experience is required. The term "pre-school experience" means the student participated in age appropriate academic, social and emotional experiences in a group setting, under the guidance and supervision of a lead teacher. The parent must provide documentation from the pre-school, including the results from a social-emotional screening completed by the lead teacher.~~

~~c) An application fee determined by the district must be submitted with the application. A partial fee waiver will be available to families that qualify to receive free or reduced lunches.~~

~~2. Children will be screened with district identified multi-domain developmental assessments to include a classroom observational experience prior to the beginning of the school year. Students must meet the minimum threshold scores on all screening tools as determined by the district.~~

~~3. Appeals process~~

~~a) Parent(s) wishing to appeal an eligibility decision based on results from the multi-domain assessment must submit a completed appeals packet. The appeals packet must be received by the district within ten (10) days of the postmarked date on the notice that the child has been determined not eligible. An appeal committee comprised of a kindergarten teacher, elementary principal, curriculum specialist, and executive director of schools and learning will review the request.~~

~~b) The outcome of the classroom observational experience is not appealable.~~

~~c) A written decision will be provided to the parent(s) by the last day in June. The decision of the appeal committee shall be final.~~

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~~made no later than the end of August prior to the beginning of the school year.~~

~~XXVI.~~I. **Transition~~al~~ to Kindergarten Program (TK)**

Transition~~al~~ to Kindergarten Qualifications. Enrollment is based upon the determination of eligibility ~~that may hinder a child from successfully participating in and/or benefiting from kindergarten~~ and must prioritize children most in need of additional preparation to be successful in kindergarten and children with the lowest family income. ~~Eligible children must:~~

A. Eligible children must:

1. ~~Students must~~ Reside in the Vancouver Public Schools attendance area;

2. Be at least four years old by August 31st of the school year they enroll in the transition to kindergarten program;

3. Have been determined to benefit from additional preparation for kindergarten and/or have ~~no~~ limited prior preschool or long-term early learning experience;

4. Enrollment is on a space available basis;

   a) Students residing within the school boundaries of the Transition~~al~~ to Kindergarten program have first priority;

   b) Students living outside of the school boundary, but within the Vancouver Public Schools' boundaries are selected next based upon the outcome of the screening process; and

5. Families must complete the application and ~~assessment~~ screening process in order to participate.

B. Application Process

~~1. Pre-screening criteria used to identify students in need ofkindergarten entry including: (1) the student is not currently in a preschool or other early learning setting; (2) age five (5) by August 31st transition to kindergarten; and (3) residing within the boundaries of Vancouver Public Schools;~~

~~2.~~1. Interested families attend one of the informational meetings offered prior to ~~applying for the program~~; scheduling a screening appointment; and

~~3.~~2. Families must complete and submit an application for their child. Applications are available online, through ParentVue~~at the school office, and the VPS Administrative Offices~~. Applications must ~~can~~ be submitted online, by the deadline. ~~Applications are accepted through early December for the desired entry year.~~ Complete applications must include:

   a) Proof of VPS residency and a copy of the child's birth certificate (or other proof of age) ~~due at the time of the assessment (screening) appointment~~;

   b) A developmental questionnaire completed by the parent/guardian at the screening appointment;

   c) Other information relevant to the child's early learning/preschool experience; and

   d) The application will include permission to evaluate.

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C. Assessment Process

1. The term "screening process and tools" means using one or more instruments or methods of assessing and measuring the ability and need of an individual student. Children will be eligible to participate in the district's transition to kindergarten program as follows:

   a) Based on a screening process and tool as defined above, the district has determined that the child would benefit from additional preparation for kindergarten; and

   b) The child's age is at least four (4) years old by August 31st of the school year in which they enroll in a transition to kindergarten program. The district has discretion to establish individualized exceptions for a student who turned five (5) years old ~~between June 1 and August 31 of~~ the year they would be eligible by age to enter kindergarten under WAC 392-335-010 but who demonstrates need for additional preparation for kindergarten through a screening process and tool.

2. Parents will be contacted by a member of the early learning team to make an appointment for a brief assessment (screener) that will include, but may not be limited to:

   a) Emergent literacy and math skills;

   b) Gross and fine motor skills;

   c) Visual and auditory skills;

   d) Social-emotional development; and

   e) Language development.

3. The assessment will be conducted by a member of the early learning team. The team includes a certificated transition to kindergarten teacher.

D. The early learning team will review the application and the assessment results and come to a decision in regards to a child's ~~need and/or ability to enter kindergarten early.~~ eligibility to participate in transition to kindergarten.~~The student must meet the screening criteria in all areas. A decision will be mailed within ten (10) days of the assessment date.~~ In determining eligibility and admitting students to a transition to kindergarten program, the district will:

1. Give priority to children most in need of additional preparation to be successful in kindergarten, as demonstrated through the screening process and tools;

2. Give priority to children with the lowest family income, not otherwise eligible and not enrolled ~~participating~~ in another local program;

3. Not exclude or establish a policy to prohibit participation of an eligible child due only to the presence of a disability; and

4. Not charge tuition or other fees from state-funded eligible students for enrollment in a transition to kindergarten program.

E. Access to the transition to kindergarten program does not constitute an individual entitlement for any particular child.

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4. F. The district will administer to all children enrolled in a transition to kindergarten program the Washington Kindergarten Inventory of Developing Skills (WaKIDS) at the beginning of their enrollment at at least one more time during the school year. Parents may excuse their children from participating in WaKIDS.

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IIIII. Admission of Students Aged Twenty-One (21) or Older

A. The student will petition the superintendent or designee for admission.

B. The petition will identify the student's name, age, address and grade level or program of study.

C. If approved, the petition will specify the tuition fee to be paid, will be signed by the student and the superintendent and will constitute the written agreement required by law. It will be retained as a public document and made available to the state Superintendent of Public Instruction upon request.

D. The tuition fee will be calculated in the same way the state Superintendent of Public Instruction determines the cost of educating a student in the district.

E. No tuition fee is charged to students who receive special education and related services under the Individuals with Disabilities Education Act.

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APPROVED:

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Dr. Jeff Snell, Superintendent Date
Vancouver Public Schools

Procedure – Nondiscrimination

This complaint procedure is adopted in accordance with chapter 392-190 WAC.
~~Anyone may file a complaint alleging that the district has violated anti-discrimination laws. This complaint procedure is designed to assure that the resolution of real or alleged violations are directed toward a just solution that is satisfactory to the complainant, the administration and the board of directors. This grievance procedure will apply to the general conditions of the nondiscrimination policy (Policy 3210) and more particularly to policies dealing with guidance and counseling (Policy 2140), special services (Policy 2161), co-curricular program (Policy 2150), service animals in schools (Policy 2030) and curriculum development and instructional materials (Policy 2020). As used in this procedure:~~

~~**I. Definitions**~~

~~A. "Grievance" means a complaint which has been filed by a complainant relating to alleged violations of any state or federal anti-discrimination laws.~~

~~B. "Complaint" means a written charge alleging specific acts, conditions or circumstances, which are in violation of the anti-discrimination laws.~~

~~C. "Respondent" means the person alleged to be responsible or who may be responsible for the violation alleged in the complaint.~~

~~D. "Parent" means a parent, guardian or person having legal custody of a child. If the student is eighteen (18) years or older, or is legally emancipated, the procedures for the parent in this regulation may be exercised by the student.~~

~~III.~~ Informal ~~Process for Resolution~~Complaint Process

A. Anyone may bring an informal (i.e., oral) complaint to the district. If that occurs, the compliance officer or designee will schedule a meeting to discuss the informal complaint and how to resolve the concerns. Using this informal process does not limit the complainant's right to file a formal complaint.

B. As part of this informal process, the district will notify the complainant in writing about their right to file a formal complaint. The notice will be in a language the complainant can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency.~~Anyone with an allegation of discrimination may request an informal meeting with the school principal, unless the principal is the alleged respondent, in which case the complainant shall move to Level One – Formal Review to resolve their concerns. Such a meeting will be at the option of the complainant. If unable to resolve the issue at this meeting, the complainant may submit a written complaint to the compliance officer. During the course of the informal process, the district must notify complainant of their right to file a formal complaint.~~

II. ~~Filing a~~Formal Complaint Process

A. Anyone may file a formal complaint alleging that the district has violated anti-discrimination

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laws. A complaint must be written and set forth the specific acts, conditions or circumstances alleged to violate anti-discrimination laws.

B. The time period for filing a complaint is one (1) year from the date of the ~~allegations~~ occurrence that ~~are~~ is the subject matter of the complaint. However, a complaint filing deadline may not be imposed if the complainant was prevented from filing due to: 1) specific misrepresentations by the district that it had resolved the problem that form the basis of the complaint; or 2) withholding of information that the district was required to provide under WAC 392-190-065 or WAC 392-190-005.

C~~B~~. Complaints may be submitted by mail, fax, email or hand-delivery to any district, school or to the district compliance officer~~, or employee responsible for investigating discrimination complaints~~. Any district employee who receives a formal complaint ~~that meets these criteria~~ will promptly notify ~~the compliance officer.~~the school administrator who will promptly notify the compliance officer.

~~C. The primary purpose of this procedure is to secure an equitable solution to a justifiable complaint. To this end, specific steps will be taken. The district is prohibited by law from intimidating, threatening, coercing or discriminating against any individual for the purpose of interfering with their right to file a grievance under this policy and procedure and from retaliating against an individual for filing such a grievance.~~

~~**III. Informal Process for Resolution**~~

~~Anyone with an allegation of discrimination may request an informal meeting with the school principal, unless the principal is the alleged respondent, in which case the complainant shall move to Level One – Formal Review to resolve their concerns. Such a meeting will be at the option of the complainant. If unable to resolve the issue at this meeting, the complainant may submit a written complaint to the compliance officer. During the course of the informal process, the district must notify complainant of their right to file a formal complaint.~~

~~**IV. Formal Process for Resolution**~~

A. Formal Complaint Level One - Complaint to District

~~1. A complaint must be written and set forth the specific acts, conditions or circumstances alleged to be in violation and submitted to the compliance officer, which is for elementary students the executive director of elementary education at 313-1000, and for secondary students the executive director of secondary education at 313-1000.~~

~~2~~1. Any school administrator who receives a formal complaint will promptly notify the compliance officer. Once the compliance officer receives a complaint, they will do the following: ~~Upon receipt of a complaint, the compliance officer will~~

a) P~~p~~rovide the complainant a copy of Policy 3210 and this procedure in a language they can understand, which may require language assistance in accordance with Title VI of the Civil Rights Act of 1964 for complainants with limited English proficiency~~this procedure~~.

b) Ensure that the district conducts a prompt and thorough investigation into the allegations in the complaint. ~~The compliance officer will investigate the allegations~~

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~~within twenty (20) calendar days.~~

c) The school district and complainant may agree to resolve the complaint in lieu of an investigation. Examples of steps the district might take include imposing discipline, separating individuals, developing a safety plan, and providing additional training. If the complaint is resolved, no further action is necessary.

2. Written Response to a Formal Complaint

a) After completing the investigation, the compliance ~~The~~ officer ~~shall~~ will provide the superintendent with a full written report of the complaint and the results of the investigation.

b) The superintendent or designee will respond to the complainant and respondent with a written ~~decision~~ response ~~as expeditiously as possible, but in no event later than~~within thirty (30) calendar days ~~following~~ after the district~~'s~~ received~~receipt of~~ the written complaint, unless otherwise agreed to by the complainant or if exceptional circumstances related to the complaint require an extension of the time limit.~~-~~ In the event an extension is needed, the district will notify the complainant in writing of the reason for the extension and the anticipated response date.~~- At the time the district responds to the complainant, the district must send a copy of the response to the Office of the Superintendent of Public Instruction.~~

c) The ~~decision~~ response of the superintendent or designee will include: 1) a summary of the results of the investigation; 2) a finding as to whether the district has failed to comply with anti-discrimination laws; 3) if non-compliance is found, corrective measures the district deems necessary to correct it; and 4) notice of the complainant's right to appeal , including where and to whom the appeal must be filed~~to the school board by submitting their appeal via email at: vpsboard@vansd.org or via mail to the Vancouver Public Schools Board President at P.O. Box 8937, Vancouver, Washington, 98668~~. The ~~superintendent's or designee's~~ response will be provided in a language the complainant can understand and may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act of 1964. At the time the district responds to the complainant, the district ~~must~~will send a copy of the response to the Office of the Superintendent of Public Instruction ("OSPI").

d) Any corrective measures deemed necessary shall be instituted as expeditiously as possible, but in no event later than thirty (30) calendar days ~~following the superintendent's mailing of a~~after the written response to the ~~complaining~~ complainant~~party~~ unless otherwise agreed to by the complainant.

B. Formal Complaint Level Two – Appeal to the Board of Directors

1. If a complainant ~~or respondent~~ disagrees with the ~~superintendent's or designee's~~ written decision or if the superintendent fails to respond, the complainant ~~or respondent~~ may appeal the decision to the ~~district~~ board of directors by filing a written notice of appeal with the secretary of the board within ten (10) calendar days following the date upon which the complainant received the response.

2. The board will issue a written appeal decision within thirty (30) calendar days of receiving

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the appeal, unless the complainant agrees otherwise. The board may schedule a meeting to hear from the complainant and district representative before issuing its decision. If it doesn't schedule a meeting, the board will consider the investigation report, the written response, and any documentation the complainant submits before making its decision. ~~The board shall schedule a hearing to commence by the twentieth (20th) calendar day following the filing of the written notice of appeal, unless otherwise agreed to by the complainant and the superintendent or for good cause. Both parties shall be allowed to present such witnesses and testimony as the board deems relevant and material. Unless otherwise agreed to by the complainant, the board will render a written decision within thirty (30) calendar days following the filing of the notice of appeal and provide the complainant with a copy of the decision.~~

3. ~~The decision of the board will be provided in a language the complainant can understand, which may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act.~~ The decision will include notice of the complainant's right to file a complaint with OSPI under WAC 392-190-075~~appeal to the Superintendent of Public Instruction and will identify where and to whom the appeal must be filed~~. The district will send a copy of the appeal decision to ~~the office of the superintendent of public instruction~~OSPI.

4. The decision of the board will be provided in a language the complainant can understand, which may require language assistance for complainants with limited English proficiency in accordance with Title VI of the Civil Rights Act.

C. Formal Complaint Level Three - Complaint to OSPI~~the Superintendent of Public Instruction~~

1. If a complainant ~~or respondent~~ disagrees with the decision of the board of directors, or if the district fails to comply with this procedure, the complainant may file a complaint with OSPI~~the superintendent of public instruction~~.

2. A complaint must be received by ~~the Superintendent of Public Instruction~~OSPI on or before the twentieth (20th) calendar day following the date upon which the complainant ~~and respondent~~ received written notice of the board of directors' decision, unless ~~the Superintendent of Public Instruction~~OSPI grants an extension for good cause. Complaints may be submitted by mail, fax, electronic mail, or hand delivery.

3. A complaint must be in writing and include: 1) A description of the specific acts, conditions or circumstances alleged to violate applicable anti-discrimination laws; 2) the name and contact information, including address, of the complainant; 3) the name and address of the district subject to the complaint; 4) a copy of the district's complaint and appeal decision, if any; and 5) a proposed resolution of the complaint or relief requested. If the allegations regard a specific student, the complaint must also include the name and address of the student, or in the case of a homeless child or youth, contact information.

4. Upon receipt of a complaint, ~~the Office of the Superintendent of Public Instruction~~OSPI may initiate an investigation, which may include conducting an independent on-site review. OSPI may also investigate additional issues related to the complaint that were not included in the initial complaint or appeal to the superintendent or board. Following the investigation, OSPI will make an independent determination as to whether the district has failed to comply with ~~RCW 28A.642.010 or~~ Chapter 392-190~~,~~ WAC and will issue a written decision to the complainant and the district that addresses each allegation in the

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complaint and any other noncompliance issues it has identified. The written decision will include corrective actions deemed necessary to correct noncompliance and documentation the district must provide to demonstrate that corrective action has been completed.

5. ~~4.~~ All corrective actions must be completed within the timelines established by OSPI in the written decision unless OSPI grants an extension. If timely compliance is not achieved, OSPI may take action including but not limited to referring the district to appropriate state or federal agencies empowered to order compliance.

6. ~~5.~~ A complaint may be resolved at any time when, before the completion of the investigation, the district voluntarily agrees to resolve the complaint. OSPI may provide technical assistance and dispute resolution methods to resolve a complaint.

D. Formal Complaint Level Four - Administrative Hearing

A complainant or school district that desires to appeal the written decision of ~~the Office of the Superintendent of Public Instruction~~OSPI may file a written notice of appeal with OSPI within thirty (30) calendar days following the date of receipt of that office's written decision. OSPI will conduct a formal administrative hearing in conformance with the Administrative Procedures Act, Chapter 34.05, RCW.

IV. Mediation

A. At any time during the discrimination complaint procedure set forth in WAC 392-190-065 through 392-190-075, a district may, at its own expense, offer mediation. The complainant and the district may agree to extend the discrimination complaint process deadlines in order to pursue mediation.

B. The purpose of mediation is to provide both the complainant and the district an opportunity to resolve disputes and reach a mutually acceptable agreement through the use of an impartial mediator. Mediation must be voluntary and requires the mutual agreement of both parties. It may be terminated by either party at any time during the mediation process. It may not be used to deny or delay a complainant's right to utilize the complaint procedures.

C. Mediation must be conducted by a qualified and impartial mediator who may not: 1) be an employee of any school district, public charter school, or other public or private agency that is providing education related services to a student who is the subject of the complaint being mediated; or 2) have a personal or professional conflict of interest. A mediator is not considered an employee of the district or charter school or other public or private agency solely because he or she serves as a mediator.

D. If the parties reach agreement through mediation, they may execute a legally binding agreement that sets forth the resolution and states that all discussions that occurred during the course of mediation will remain confidential and may not be used as evidence in any subsequent complaint, due process hearing or civil proceeding. The agreement must be signed by the complainant and a district representative who has authority to bind the district.

V. Preservation of Records

The files containing copies of all correspondence relative to each complaint communicated to the district and the disposition, including any corrective measures instituted by the district, will be retained

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~~in the office of the compliance officer for a period of~~ for six years.

~~VI. Resources~~

~~A. District Contacts / Compliance Officers~~

~~Jeff Fish~~
~~Assistant Superintendent Human Resources~~
~~jeff.fish@vansd.org~~
~~360-313-1000~~

~~Janell Ephraim~~
~~Civil Rights Coordinator~~
~~Janell.ephraim@vansd.org~~
~~360-313-1000~~

~~B. State Contacts~~

~~Superintendent of Public Instruction Equity and Civil Rights Office~~
~~P.O. Box 47200~~
~~Olympia, WA 98504-7200~~
~~360.725.6162~~

~~Washington State Human Rights Commission~~
~~711 South Capitol Way, Suite 402~~
~~P.O. Box 42490~~
~~Olympia, WA 98504-2490~~
~~360.753.6770~~

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APPROVED:

_____ _____
Jeff Snell, Superintendent Date
Vancouver Public Schools

Procedure – Infectious Diseases

Certain microorganisms in the body cause infectious disease. Infectious diseases may or may not be communicable or in a contagious state.

The district may control diseases in a contagious state by excluding the student from the school or classroom or by referring the student for medical attention. Staff members must advise the school nurse and principal or designee when a student exhibits symptoms of an infectious disease based on the criteria outlined in this procedure. Staff should provide the school nurse, principal, or designee with as much health information as is known about the case in a timely manner so that appropriate action can be initiated. (See -*DOH's Infectious Disease Control Guide for School Staff*) OSPI's *Infectious Disease Control Guide for school staff*) (IDCGSS).

I. List of Reportable Diseases

In consultation with the school nurse, the district will report suspected disease or disease with known diagnosis to the local health department as indicated on the Notifiable Conditions page of the Washington State Department of Health's website.

II. Cluster of Cases

The occurrence of any generalized (covering greater than 75% of the body) rash with or without fever, cough, runny nose, and/or reddened eyes in a school MUST be reported IMMEDIATELY to the school nurse who will in turn report as necessary to the local health department. Localized rash cases diagnosed as unrelated to a contagious disease, such as diaper rash, poison oak, etc. need not be reported. In addition to rash illnesses, any unusual cluster of infectious disease must be reported to the school nurse, who will report to the local health jurisdiction as necessary.

III. Identification and Follow-Up

A. The length of absence from school for a student ill from a contagious disease is determined by the directions given in the *Infectious Disease Control Guide for School Staff* or instructions provided by the student's licensed health care provider, and/or the local health officer.

B. The principal or program manager has the final responsibility for enforcing all exclusions.

C. In practice, when the principal suspects a nuisance disease such as pediculosis (lice), the principal may institute screening procedures to determine if, in fact, the disease exists. Written instructions as to care are provided to the parent(s) or guardian(s) in suspected cases.

D. Follow-up of suspected communicable disease cases should be carried out in order to determine any action necessary to prevent the spread of the disease to additional children.

E. Staff will follow the directions of the local health officer and the Washington State Department of Health guidelines for mitigation measures.

IV. Reporting At Building Level

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A. Each incident of a student who is absent from school because the student is suffering from a communicable disease shall be reported to the school nurse.

B. All cases of communicable diseases shall be reported to the health services office on a Weekly Communicable Disease Report Form (CD-AP-102) by the nurse.

C. All major cases of communicable disease shall be reported by the principal, nurse, or designee, by telephone to the health services office.

D. A student with a diagnosed reportable disease will be reported by the school principal or designee to the local health officer (or state health officer if local health officer is not available) as per schedule.

E. When symptoms of communicable disease are detected in a student who is at school, the regular procedure for the disposition of an ill or injured student will be followed In all instances, the school nurse, principal or designee will:

1. Notify the parent/guardian or emergency contact to advise them of the signs and symptoms;

2. Arrange for the parent/guardian to pick up the student as soon as possible and recommend follow up with a licensed health care provider;

3. Keep the student isolated but observed until the parent/guardian arrives; and

4. Notify the school nurse to ensure appropriate health-related interventions are in place.

Note: When the student is fourteen (14) years or older and the symptoms are of a sexually transmitted infection~~disease~~, the student has confidentiality rights that prohibit notification of anyone but the health department.

F. Environmental surveillance is to be provided by the nurse to prevent spread of the disease.

G. Any school district employee, to whom it is disclosed that a student has HIV/AIDS, should immediately make an oral report, in person or by telephone, to the Executive Director of Human Resources. The executive director is the only person to whom the school district employee can disclose the information.

H. The associate superintendent will be responsible for contacting the local public health officer and for maintaining a confidential written record of the report. The written report is not to be placed in the infected student's file

V. First Aid Procedures

A. Students should be asked to wash their own minor wound areas with soap and water under staff guidance when practicable. If performed by staff, wound cleansing should be conducted in the following manner:

1. Soap and water are recommended for washing wounds;

2. Gloves must be worn when cleansing wounds which may put the staff member in contact with wound secretions or when contact with any bodily fluids is possible;

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3. Gloves and any cleansing materials will be discarded in a lined trash container that is disposed of daily according to WAC 296-823 – Occupational exposure to bloodborne pathogens and included in OSPI's most recent *Infectious Disease Control Guide for School Staff*;

4. Hands must be washed before and after treating the student and after removing the gloves; and

5. Treatment must be documented in a health record.

B. Thermometers will be handled in the following manner:

1. Only disposable thermometers or non-mercury thermometers with disposable sheath covers and/or temporal scan thermometers should be used when taking student's temperatures; and

2. Disposable sheath covers will be discarded in a lined trash container that is secured and disposed of daily. Temporal scan thermometers will be disinfected after each use.

C. Handwashing Procedures by Building Staff

1. Handwashing is the most important element for preventing spread of disease.

2. School staff attending to students for first aid, taking temperatures or any contact in office or health room should be concerned about clean hands. Hands should be washed before and after contact.

3. Hands should be vigorously washed with soap under a stream of water for approximately one minute. Rinse with running water. Dry thoroughly with paper towels.

VI. Handling of Body Fluids

A. Body fluids of all persons should be considered to contain potentially infectious agents (germs). Body fluids include blood, drainage from scrapes and cuts, feces, urine, vomitus, saliva, and respiratory secretions, semen and vaginal secretions;

B. Gloves must be worn when direct hand contact with body fluids is anticipated (e.g., treating nose bleeds, bleeding abrasions), when handling clothes soiled by body fluids (e.g., urine and/or feces), when diapering children and when sanitizing spaced used for diapering. Hand washing is the most important intervention for preventing the spread of disease and must take place after gloves are removed and between care of multiple students;

C. Used gloves must be discarded in a secured lined trash container and disposed of daily according to WAC 296-823 - Occupational exposure to bloodborne pathogens and included in DOH's most recent ~~the most recent OSPI~~ *Infectious Disease Control Guide for School Staff*. Hands must then be washed thoroughly;

D. Self-treatment of minor injury, when reasonable, will be encouraged;

E. Sharps will be disposed in an approved container. Sharps containers must be maintained upright throughout use, be tamper-proof and safely out of students' reach, be replaced routinely and not be allowed to overfill;

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F. For cleaning and disinfection, follow CDC and EPA recommendation. In addition, the district will comply with WAC 296.823 –~~–~~ ~~Occupational exposure to~~ B~~b~~loodborne P~~p~~athogens and ~~included in~~ the ~~most recent OSPI~~ *Infectious Disease Control Guide for School Staff* .

VII. ~~Treatment of Students with Chronic Medical Conditions (e.g., HIV; AIDS; Hepatitis)~~Release of Information

~~A. On the disclosure that a student has been identified as having acquired Human Immunodeficiency Virus (HIV) or Acquired Immunodeficiency Syndrome (AIDS) or infectious Hepatitis, the superintendent, principal, parent/guardian, local health officer, school nurse and the student's licensed healthcare provider will confer as necessary and determine the appropriate placement of the student. The student will be accommodated in a least restrictive manner, free of discrimination, without endangering the other students or staff. The student may only be excluded from school on the written concurrence of the public health officer and the student's licensed healthcare provider, that remaining or returning to school would constitute a risk either to the student or to employees or other students.~~

B. All individual student health care discussions and records will be treated as confidential, consistent with health and educational law ~~RCW 70.02.220~~.

C. Release of information regarding the testing, test result, diagnosis or treatment of a student for a sexually transmitted- infection~~disease~~, bloodborne pathogens (BBP) ~~HIV~~, drug, alcohol, mental health treatment, family planning, or abortion may be made only as pursuant to an effective release and only to the degree permitted by the release. To be effective, a release must be signed, dated, must specify to whom the release may be made, and the time period for which the release is effective. Students fourteen (14) and older must authorize disclosure regarding HIV, sexually transmitted ~~diseases~~infection, or reproductive healthcare issues. Students thirteen (13) and older must authorize disclosure regarding drug or alcohol, or mental health treatment. Students of any age must authorize disclosure regarding family planning or abortion. Parents/guardians must authorize disclosure pertaining to younger students.

D. Any disclosure made pursuant to a release regarding reproductive healthcare, including sexually transmitted ~~diseases~~infections, blood-borne pathogens, drug treatment or alcohol treatment must be accompanied by the following statement:

> *"This information has been disclosed to you from records whose confidentiality is protected by state law. State law prohibits you from making any further disclosure of it without the specific written consent of the person to whom it pertains, or as otherwise permitted by state law. A general authorization for the release of medical or other information is not sufficient for this purpose."*

E. The district will ensure that newly hired school district employees receive the blood-borne pathogens training regarding:

1. History and epidemiology of blood-borne pathogens;

2. Methods of transmission of blood-borne pathogens;

~~2.~~3. Access to a copy of WAC 296-823-12005 and the District exposure control plan;

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4. ~~Methods of~~ P~~p~~revention of exposure to blood-borne pathogens, how to recognize tasks and other activities that could involve exposure to blood and other potentially infectious materials and ~~including~~ universal precautions for handling of body fluids;

5. Methods for identifying tasks that could involve exposure to blood-borne pathogens and to prevent or reduce exposure;

~~3.~~6. Information about hepatitis B vaccine;

~~4.~~7. Current treatment for symptoms of blood-borne pathogens and prognosis of disease progression;

~~5.~~8. State and federal laws governing discrimination of persons with blood-borne pathogens; and

~~6.~~9. State and federal laws regulating confidentiality of a person's blood-borne pathogens.

F. An opportunity for interactive questions and answers with a trainer must also be provided. The district will ensure that new employees receive training~~-~~ before staff engage in duties that my expose them to BBP, then annually by law~~within six (6) months from the first day of employment in the district~~.

G. Continuing employees will receive information, within one year of district receipt from OSPI, on new discoveries or changes in accepted knowledge of transmission, prevention, and treatment for blood-borne pathogens.

H. Disinfecting Contaminated Surfaces by Custodial Staff

1. Intermediate level disinfectant will be used to clean surfaces contaminated by body fluids.

2. Disinfectants:

a) Household bleach diluted one part to 10 parts water. This is preferred for objects that may be put in the mouth. Note: this solution must be mixed on a daily basis due to evaporation of bleach;

b) 70% ethyl or isopropyl alcohol;

c) Phenolic germicidal detergent, 1% solution (lysol); or

d) Quaternary ammonia germicidal detergent in 2% aqueous solution (Triquat).

3. Procedures

a) Remove soil;

b) Apply disinfectant with mop or cloth;

c) Dispose of water in toilet or sink designed for contaminated water;

d) If cloths and towels are used, these should be placed in plastic bag to be sent to

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laundry; and

e) Paper towels and other disposable items should be placed in lined trash container which is secured and discarded daily.

4. Disinfection of Rugs

a) Apply sanitary absorbent agent;

b) Let dry and vacuum. If necessary, mechanically remove with dustpan and broom;

c) Apply rug shampoo using a germicidal detergent;

d) Re-vacuum;

5. Rinse dustpan and broom in disinfectant; and

6. Discard non-reusable cleaning equipment in lined trash container that is secured and discarded daily.

I. Handling of Soiled Clothing, Blankets, Pillowcases

1. If clothing is to be sent home or to laundry, place in plastic bag and tie securely;

2. Responsible person will use discretion to discard when indicated;

3. If washing at school, wash separately in soap and water on wash cycle. If material is bleachable, add 1/2 cup household bleach to wash cycle; and

4. If not colorfast, add 1/2 cup non-household bleach to wash cycle.

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APPROVED:

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~~Dr. Steven Webb~~Jeff Snell, Superintendent Date
Vancouver Public Schools

Procedure - Complaints Concerning Staff or Programs

Most school-level complaints can be resolved by informal discussions between the community member and the staff member. If the matter is not resolved, the principal will attempt to resolve the issue through a conference with the community member and the staff member. The following procedures apply to the processing of a complaint, which cannot be resolved in the manner described above:

A. If the problem is not satisfactorily resolved at the building level, the community member should contact the appropriate executive director to discuss the problem and a suggested solution. The community member also may file a written complaint. The executive director should send copies to the principal and staff member.

B. The executive director shall then attempt to resolve the matter through a conference with the community member, staff member and principal.

C. If the matter is not resolved through mutual agreement, the executive director shall make a decision on the matter, which shall be communicated to the community member and appropriate staff members in a timely manner. The superintendent shall be informed of the events and circumstances concerning the complaint.

~~D. If the complaint is directed against a certificated staff member, Chapter 9 of the Comprehensive Professional Agreement between Vancouver Public Schools and the Vancouver Education Association will be applicable.~~

~~E~~D. If a complaint is directed against an employee represented by ~~another~~ a bargaining unit, the relevant terms, if any, of the collective bargaining agreement will be applicable.

~~F~~E. If a complaint other than at the school level is directed against a supervisor, an administrator, or another employee, the complaint will be referred to the employee's immediate supervisor or human resources for resolution of the complaint.

~~G~~F. This procedure does not preclude the appropriate executive director from resolving a complaint through other processes, as deemed appropriate.

~~H~~G. Complaints that implicate or potentially implicate staff mistreatment of students under VPS Policy 3210, Nondiscrimination, VPS Policy 3205, Sexual Harassment of Students Prohibited, or VPS Policy 3207, Prohibition of Harassment, Intimidation, and Bullying, shall be promptly referred to the executive director of human resources.

APPROVED:

_____ _____

Dr. Jeff Snell, Superintendent Date
Vancouver Public Schools

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Procedure - Maintaining Professional Staff/Student Boundaries

I. Definitions

As used in this procedure, the term "student" means the following:[TDR1]

1. Any student who is enrolled in the district or under the supervision, direction, or control of a staff member.

3. Any student while participating in or attending a district-related activity or while participating in or attending any activity in which the staff member is performing professional duties.

4. Any student who is under eighteen years of age, who was enrolled in the district or under the supervision, direction, or control of a staff member, and who has withdrawn from the school or district, graduated, or transferred to another school or district.

II. Boundary Invasions

A. In a professional staff/student relationship, staff maintain boundaries that are consistent with the legal and ethical duty of care that school personnel have for students.

B. A boundary invasion is an act or omission by a staff member that violates professional staff/student boundaries and has the potential to abuse the staff/student relationship.

C. An inappropriate boundary invasion means an act, omission, or pattern of such behavior by a staff member that does not have an educational purpose and results in abuse of the staff/student professional relationship.

III. Inappropriate Boundary Invasion Examples

Examples of possible inappropriate boundary invasions by staff members include, but are not limited to, the following:

A. Any type of inappropriate physical contact with a student or any other conduct that might be considered harassment under the district's policy on sexual harassment of students; prohibition of harassment, intimidation and bullying; nondiscrimination; Title IX of the Education Amendments of 1972 (Title IX); the Washington State Law Against Discrimination (Chapter 49.60 RCW); or that constitutes misconduct under RCW 28A.640 and .642 or WAC 181-88-060; or any conduct that would constitute a violation of Chapter 9A.44 or 9A.88 RCW.

B. Showing or viewing pornography to or with a student;

C. Singling out a particular student or students for personal attention and friendship beyond the professional staff/student relationship;

D. Socializing where students are consuming alcohol, drugs or tobacco;

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E. For non-guidance/counseling staff, encouraging students to confide their personal or family problems and/or relationships. If a student initiates such discussions, staff members are expected to refer the student to appropriate guidance/counseling staff. In either case, staff involvement should be limited to a direct connection to the student's school performance;

F. Sending students on personal errands unrelated to any educational purpose;

G. Banter, allusions, jokes or innuendos of a sexual nature with students;

H. Disclosing personal, sexual, family, employment concerns or other private matters to one or more students;

I. Addressing students or permitting students to address staff members with personalized terms of endearment, pet names, or otherwise in an overly familiar manner;

J. Maintaining personal contact with a student, including soliciting contact from a student, outside of school by phone, including texting and other phone applications, email, instant messenger or Internet chat rooms, social networking websites, or letters beyond homework or other legitimate school business, except where the parent or guardian and building administrator/supervisor has consented to such communications and receives a copy of the communication. Staff should use school email addresses and phone numbers and the parent/guardian phone numbers for communications with students.

K. Exchanging personal gifts, cards, or letters with an individual student;

L. Socializing or spending time with students (including but not limited to activities such as going out for beverages, meals or movies, shopping, traveling and recreational activities) outside of school-sponsored events, except as participants in organized community activities;

M. Giving a student a ride alone in a vehicle in a non-emergency situation;

N. Unnecessarily invading a student's privacy, (e.g. walking in on the student in the bathroom); or

O. Any other conduct that fails to maintain professional staff/student boundaries.

~~III~~VI. Appearances of Impropriety

The following activities are boundary invasions and can create an actual impropriety or the appearance of impropriety. Whenever possible, staff should avoid these situations. If unavoidable these activities should be pre-approved by the appropriate administrator. If not pre-approved, the staff member must report the occurrence to the appropriate administrator as soon as possible, and no later than the next work day.

A. Repeatedly being alone with an individual student out of the view of others, except when essential because of the employee's professional responsibilities;

B. Inviting or allowing individual students to visit the staff member's home, unless the visit arises out of the student's relationship with the employee's child or a relationship between the student's parent/guardian and the employee; and/or

C. Visiting a student's home, except as part of assigned professional responsibilities, unless the visit arises out of the student's relationship with the employee's child, or a relationship between the

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student's parent/guardian and the employee.

~~I~~V. Reporting Violations

A. Students and their parents/guardians are strongly encouraged to notify the principal (or other administrator) if they believe a staff member may be engaging in conduct that violates this policy or procedure.

B. Staff members are required to promptly notify the principal, ~~or the~~ supervisor ~~or the assistant superintendent of human resources~~ of the employee or volunteer, or executive director of human resources if they know or suspect that a staff member is~~ed of~~ engaging in ~~inappropriate~~ conduct that violates this policy or procedure.

C. All school personnel who have reasonable cause to believe that a student has experienced sexual abuse by a staff member are required to make a report to law enforcement, in accordance with VPS Policy and Procedure 3421, Child Abuse and Neglect, and Chapter 26.44 RCW.

D. Staff members should:

1. ~~Not wait before~~Report ~~reporting~~ suspicious behavior at the first opportunity ~~or try~~without attempting to determine on their own -whether there is an innocent explanation;

2. Not confront or discuss the matter with the staff member at issue or with anyone else, but maintain confidentiality to protect privacy and avoid rumors; and

3. Document for their own records, that they notified an administrator, including to whom and what they reported.[TDR2]

~~C~~E. The administrator to whom a boundary invasion concern is reported must document, in writing, the concern and provide a copy of the documentation to the ~~assistant superintendent~~executive director of human resources. ~~-~~Human resources will see that the report is investigated and documented, and if a boundary invasion occurred without a legitimate educational or school-related purpose, or an emergency, that appropriate action is taken and documented. ~~The assistant superintendent of h~~Human resources will maintain a file documenting reports of this nature which are made.

V~~I~~I. Reporting Sexual Abuse

All professional school personnel who have reasonable cause to believe that a student has experienced sexual abuse by a staff member, volunteer, or agency personnel working in the school are required to make a report to Child Protective Services or law enforcement pursuant to VPS Policy and Procedure 3421, Child Abuse~~,~~ and Neglect ~~and Exploitation Prevention~~, and Chapter 26.44~~,~~ RCW. Reporting suspected abuse to the building principal or supervisor does not relieve professional school personnel from their reporting responsibilities and timelines.

VII. Reporting Relationships with Former Students[TDR3]

A. Staff are strongly discouraged from engaging in personal or romantic relationships with former students that could give the appearance of impropriety. This includes but is not limited to relationships with a former student that would be prohibited by district policy or law, or constitute an act of unprofessional conduct, with a current student.

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B. To mitigate the risk of an actual impropriety or the appearance of impropriety, staff members must report if they are or will be engaged in a personal or romantic relationship with any former student, as follows. The staff member must promptly report the relationship to their supervisor if the relationship initiates within 90 days of the former student's graduation, withdrawal, or transfer from the school or district and the nature of the relationship would be prohibited by district policy or law, or constitute an act of unprofessional conduct, with a current student.

VIII.Disciplinary Action

Staff violations of this policy may result in disciplinary action up to and including dismissal. Violations of this policy may occur by ignoring professional boundaries as well as failing to report another staff member or volunteer who is ignoring professional boundaries. The violation may also be reported to the Washington State Office of Professional Practices.

VIIIX. Training

All new employees and volunteers will receive training on appropriate staff/student boundaries within three months of employment or service. Continuing staff will receive training every three two (23) years. School administrators will receive training at least annually.

XVIII. Dissemination of Policy and Reporting Protocols

This policy and procedure will be included on the district website and in all employee, student, and volunteer handbooks. Annually, all administrators and staff will receive copies of the district's reporting protocol.

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APPROVED:

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Dr. Steven WebbJeff Snell, Superintendent Date
Vancouver Public Schools